

mon crime committed against law upon the persons or property of the black race. Such an act may deprive the black man of his property, but not of the right to hold property. It means a deprivation of the right itself, either by the State judiciary or the State Legislature.”³⁶

And Senator Trumbull, then Chairman of the Senate Judiciary Committee,³⁷ in his remarks urging its passage over the veto, expressed the intendment of the second section as those who voted for it read it:

“If an offense is committed against a colored person simply because he is colored, in a State where the law affords him the same protection as if he were white, this act neither has nor was intended to have anything to do with his case, because he has adequate remedies in the State courts; but if he is discriminated against under color of State laws because he is colored, then it becomes necessary to interfere for his protection.”³⁸

Section 2 of the 1866 Act was re-enacted in substance in 1870 as part of “An Act to enforce the Right of Citizens . . . to vote in the several States . . .,” 16 Stat. 140,

³⁶ Cong. Globe, 39th Cong., 1st Sess. 1680. See also *id.*, at 1266. Light is thrown upon this distinction between the deprivation of a right and its violation—deprivation being competent to the law-making and law-enforcing organs of a State—by comparison of the language of § 1979, establishing liability for the “deprivation of any rights, privileges, or immunities secured by the Constitution . . .,” 17 Stat. 13, with the provisions of the criminal conspiracy section of the 1870 Act, penalizing conspiracies to intimidate any person in order to “hinder his free exercise and enjoyment of any right or privilege granted or secured to him by the Constitution.” 16 Stat. 140, 141. Cf. *Civil Rights Cases*, 109 U. S. 3, 17–18.

³⁷ Senator Trumbull had introduced the bill. Cong. Globe, 39th Cong., 1st Sess. 129.

³⁸ Cong. Globe, 39th Cong., 1st Sess. 1758.